

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 24-005

**Amendments to Title 16, Section 16-109 of the Chickasaw Nation Code
(Members and Officers: General Provisions)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and procedures in the event the Chairperson and/or the Secretary are absent during meetings, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16, Section 16-109 of the Chickasaw Nation Code, all other sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 16-109

MEMBERS & OFFICERS; GENERAL PROVISIONS.

E. Absence.

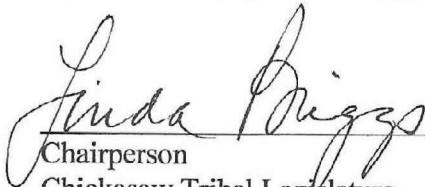
1. In the absence of the Chairperson, the Secretary shall remain in the office of Secretary and shall preside as Chairperson Pro Tempore only to conduct the business of the Legislature.

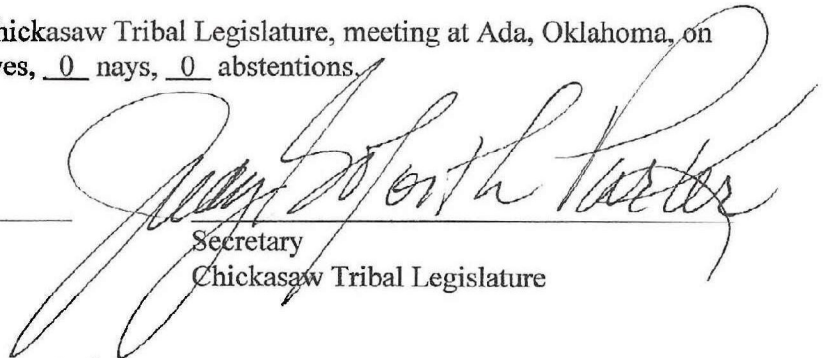
2. In the absence of the Secretary, a Secretary Pro Tempore shall be appointed by the Chairperson, or if the Secretary is presiding as Chairperson Pro Tempore, a Secretary Pro Tempore shall be appointed by the Chairperson Pro Tempore ~~elected by the Legislature~~

3. In the absence of both the Chairperson and Secretary during a Committee of the Whole meeting or a regular or special session, the Committee Chair of the Legislative Committee shall serve as Chairperson Pro Tempore. The Chairperson Pro Tempore shall select a Secretary Pro Tempore.

4. In the absence of both the Chairperson and Secretary during a Committee meeting, a Chairperson Pro Tempore shall be selected by the Legislature from the members of the Legislature who are not members of the Committee, such Chairperson Pro Tempore to serve during all committee meetings that day. In the absence of both the Chairperson and Secretary during a meeting of the Legislative Committee, any Legislator present may be selected as Chairperson Pro Tempore."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 20, 2007, by a vote of 11 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 20 2007

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(Members and Officers: General Provisions)

Explanation: This resolution amends Title 16, Section 16-109 to provide for the absences of the Chairperson and/or the Secretary during Committee of the Whole meetings, legislative sessions and committee meetings.

Requested By: Judy Goforth Parker, Legislator

Presented By: Steve Woods, Committee Chair
Legislative Committee